

Mewalal v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 20 September 2017 · Writ-C No. 44600 of 2017 · **Writ disposed; petitioner relegated to Clause 6.5 fact-finding.**

HEADNOTE

A writ court will not decide whether the petitioner took an electricity connection or is liable for recovery of consumption charges. That disputed question of fact is to be determined under Clause 6.5 of the U.P. Electricity Supply Code, 2005, and the area officer shall pass an appropriate order in accordance with law within six weeks of presentation of a certified copy of the order.

FACTUAL SUMMARY

Mewalal petitioned the Allahabad High Court against recovery of electricity charges. He denied having applied for or taken any electricity connection and said the alleged consumption could not be his liability. The respondents were the State of Uttar Pradesh and two others. After hearing his counsel, the Division Bench treated the controversy as a disputed question of fact and declined to examine it under Article 226, directing him instead to the statutory fact-finding process under the Supply Code.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-objection-to-executive-engineer-under-6.5

HOLDING

Whether the petitioner applied for or took an electricity connection, and whether recovery of consumption charges can be fastened on him, is a disputed question of fact which cannot be decided in writ jurisdiction under Article 226. Clause 6.5 of the U.P. Electricity Supply Code, 2005 itself prescribes the fact-finding modality: the petitioner may approach the area officer (respondent no. 2), who, on being apprised of the dispute with a certified copy of the order, shall pass an appropriate order in accordance with law within six weeks of presentation. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 A writ court will not decide whether the petitioner took an electricity connection or is liable for recovery of consumption charges. That disputed question of fact is to be determined under Clause 6.5 of the U.P.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER APPLIED FOR OR TOOK ANY ELECTRICITY CONNECTION AND IS LIABLE FOR THE RECOVERY OF CONSUMPTION CHARGES.

¶ 1